IN THE NATIONAL COMPANY LAW TRIBUNAL
DIVISION BENCH (COURT– I) CHENNAI

ATTENDANCE CUM ORDER SHEET OF THE HEARING
HELD ON **28.05.2025** THROUGH VIDEO CONFERENCE

PRESENT: HON'BLE SHRI. SANJIV JAIN, MEMBER (JUDICIAL)
HON'BLE SHRI VENKATARAMAN SUBRAMANIAM, MEMBER (TECHNICAL)

Application No	:	CA(CAA)/69(CHE)/2024
Petition No	:	CP(CAA)/20(CHE)/2025
Name of Petitioner & Name of Respondent	:	Thriveni Earthmovers Pvt Ltd and Other
Section	:	230-232 of CA, 2013

ORDER

CP(CAA)/20(CHE)/2025

Present: Mr. P.H.Arvindh Pandian, Ld. Senior Counsel along with
Mr. Pawan Jhabakh for Petitioner.
Mr. Avinash Krishnan Ravi, Ld. Counsel for RD.
Ms. Sangarika, Ld. Counsel for IT Department.

RD report is stated to be e-filed. **Registry is directed to accept the hard copy.**

Registry is also directed to accept the reply of the IT Department, copy of which has already been served on the Counsel for the Petitioner.

Report of the GST Department also received in sealed cover.

Affidavits e-filed by the Petitioner in response to the observations raised by the GST Departments and the IT Department.

Ld. Counsel for Petitioner on instructions submits that the Petitioner undertakes to comply with the provisions contained under Section 230-232 of the Companies Act, 2013 as observed by the RD in its Report at para 11.

Ld. Counsel on instructions further submits that the Resulting Company undertakes to bear / meet the liabilities present and future in respect of the demerged undertaking.

Registry is directed to accept the hard copy.

Arguments heard.

Synopsis is stated to be e-filed. **Registry is directed to accept the hard copy.**

Order reserved.

-sd-
[VENKATARAMAN SUBRAMANIAM]
MEMBER (TECHNICAL)

-sd-
[SANJIV JAIN]
MEMBER (JUDICIAL)

MS

Date: 28.05.2025